

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3037 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Mark Lepak

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR
HOUSE BILL 3037

By: Lepak of the House

and

Bergstrom of the Senate

FLOOR SUBSTITUTE

An Act relating to The Governmental Tort Claims Act; amending 51 O.S. 2021, Section 155, as amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2025, Section 155), which relates to exemptions from liability; exempting any claims based on an act or omission of a student actively participating in certain institution-sponsored activities or events when such participation is an academic requirement; clarifying exemption does not apply to student athletes; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 51 O.S. 2021, Section 155, as amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2025, Section 155), is amended to read as follows:

Section 155. The state or a political subdivision shall not be liable if a loss or claim results from:

1. Legislative functions;

1 2. Judicial, quasi-judicial, or prosecutorial functions, other
2 than claims for wrongful criminal felony conviction resulting in
3 imprisonment provided for in Section 154 of this title;

4 3. Execution or enforcement of the lawful orders of any court;

5 4. Adoption or enforcement of or failure to adopt or enforce a
6 law, whether valid or invalid, including, but not limited to, any
7 statute, charter provision, ordinance, resolution, rule, regulation
8 or written policy;

9 5. Performance of or the failure to exercise or perform any act
10 or service which is in the discretion of the state or political
11 subdivision or its employees;

12 6. Civil disobedience, riot, insurrection or rebellion or the
13 failure to provide, or the method of providing, police, law
14 enforcement or fire protection;

15 7. Any claim based on the theory of attractive nuisance;

16 8. Snow or ice conditions or temporary or natural conditions on
17 any public way or other public place due to weather conditions,
18 unless the condition is affirmatively caused by the negligent act of
19 the state or a political subdivision;

20 9. Entry upon any property where that entry is expressly or
21 implied authorized by law;

22 10. Natural conditions of property of the state or political
23 subdivision;

1 11. Assessment or collection of taxes or special assessments,
2 license or registration fees, or other fees or charges imposed by
3 law;

4 12. Licensing powers or functions including, but not limited
5 to, the issuance, denial, suspension or revocation of or failure or
6 refusal to issue, deny, suspend or revoke any permit, license,
7 certificate, approval, order or similar authority;

8 13. Inspection powers or functions, including failure to make
9 an inspection, review or approval, or making an inadequate or
10 negligent inspection, review or approval of any property, real or
11 personal, to determine whether the property complies with or
12 violates any law or contains a hazard to health or safety, or fails
13 to conform to a recognized standard;

14 14. Any loss to any person covered by any workers' compensation
15 act or any employer's liability act;

16 15. Absence, condition, location or malfunction of any traffic
17 or road sign, signal or warning device unless the absence,
18 condition, location or malfunction is not corrected by the state or
19 political subdivision responsible within a reasonable time after
20 actual or constructive notice or the removal or destruction of such
21 signs, signals or warning devices by third parties, action of
22 weather elements or as a result of traffic collision except on
23 failure of the state or political subdivision to correct the same
24 within a reasonable time after actual or constructive notice.

1 Nothing herein shall give rise to liability arising from the failure
2 of the state or any political subdivision to initially place any of
3 the above signs, signals or warning devices. The signs, signals and
4 warning devices referred to herein are those used in connection with
5 hazards normally connected with the use of roadways or public ways
6 and do not apply to the duty to warn of special defects such as
7 excavations or roadway obstructions;

8 16. Any claim which is limited or barred by any other law;

9 17. Misrepresentation, if unintentional;

10 18. An act or omission of an independent contractor or
11 consultant or his or her employees, agents, subcontractors or
12 suppliers or of a person other than an employee of the state or
13 political subdivision at the time the act or omission occurred;

14 19. Theft by a third person of money in the custody of an
15 employee unless the loss was sustained because of the negligence or
16 wrongful act or omission of the employee;

17 20. Participation in or practice for any interscholastic or
18 other athletic contest sponsored or conducted by or on the property
19 of the state or a political subdivision;

20 21. Participation in any activity approved by a local board of
21 education and held within a building or on the grounds of the school
22 district served by that local board of education before or after
23 normal school hours or on weekends;

1 22. Use of indoor or outdoor school property and facilities
2 made available for public recreation before or after normal school
3 hours or on weekends or school vacations, except those claims
4 resulting from willful and wanton acts of negligence. For purposes
5 of this paragraph:

6 a. "public" includes, but is not limited to, students
7 during nonschool hours and school staff when not
8 working as employees of the school, and

9 b. "recreation" means any indoor or outdoor physical
10 activity, either organized or unorganized, undertaken
11 for exercise, relaxation, diversion, sport or
12 pleasure, and that is not otherwise covered by
13 paragraph 20 or 21 of this section;

14 23. Any court-ordered, Department of Corrections or county
15 approved work release program; provided, however, this provision
16 shall not apply to claims from individuals not in the custody of the
17 Department of Corrections based on accidents involving motor
18 vehicles owned or operated by the Department of Corrections;

19 24. The activities of the state military forces when on state
20 active duty orders or on Title 32 active duty orders;

21 25. Provision, equipping, operation or maintenance of any
22 prison, jail or correctional facility, or injuries resulting from
23 the parole or escape of a prisoner or injuries by a prisoner to any
24 other prisoner; provided, however, this provision shall not apply to

1 claims from individuals not in the custody of the Department of
2 Corrections based on accidents involving motor vehicles owned or
3 operated by the Department of Corrections;

4 26. Provision, equipping, operation or maintenance of any
5 juvenile detention facility, or injuries resulting from the escape
6 of a juvenile detainee, or injuries by a juvenile detainee to any
7 other juvenile detainee;

8 27. Any claim or action based on the theory of manufacturer's
9 products liability or breach of warranty, either expressed or
10 implied;

11 28. Any claim or action based on the theory of indemnification
12 or subrogation; provided, however, a political subdivision as
13 defined in subparagraph s of paragraph 11 of Section 152 of this
14 title may enter into a contract with a contract operator or any
15 railroad operating in interstate commerce that sells a property
16 interest or provides services to a regional transportation
17 authority, or allows the regional transportation authority to use
18 the railroad's property or tracks for the provision of public
19 passenger rail service, providing for the allocation of financial
20 responsibility, indemnification, or the procurement of insurance for
21 the parties for all types of claims or damages, provided that funds
22 have been appropriated to cover the resulting contractual obligation
23 at the time the contract is executed. The acquisition of commercial
24 liability insurance to cover the activities of the regional

1 transportation authority, contract operator or railroad shall not
2 operate as a waiver of any of the liabilities, immunities or
3 defenses provided for political subdivisions pursuant to the
4 provisions of The Governmental Tort Claims Act. A contract entered
5 into under this paragraph shall not affect rights of employees under
6 the Federal Employers Liability Act or the Federal Railway Labor
7 Act;

8 29. Any claim based upon an act or omission of an employee in
9 the placement of children;

10 30. Acts or omissions done in conformance with then current
11 recognized standards;

12 31. Maintenance of the state highway system or any portion
13 thereof unless the claimant presents evidence which establishes
14 either that the state failed to warn of the unsafe condition or that
15 the loss would not have occurred but for a negligent affirmative act
16 of the state;

17 32. Any confirmation of the existence or nonexistence of any
18 effective financing statement on file in the office of the Secretary
19 of State made in good faith by an employee of the office of the
20 Secretary of State as required by the provisions of Section 1-9-
21 320.6 of Title 12A of the Oklahoma Statutes;

22 33. Any court-ordered community sentence;

23 34. Remedial action and any subsequent related maintenance of
24 property pursuant to and in compliance with an authorized

1 environmental remediation program, order, or requirement of a
2 federal or state environmental agency;

3 35. The use of necessary and reasonable force by a school
4 district employee to control and discipline a student during the
5 time the student is in attendance or in transit to and from the
6 school, or any other function authorized by the school district;

7 36. Actions taken in good faith by a school district employee
8 for the out-of-school suspension of a student pursuant to applicable
9 Oklahoma Statutes; ~~or~~

10 37. Use of a public facility opened to the general public
11 during an emergency; or

12 38. a. Any claim based upon an act or omission of a student
13 enrolled at an institution of higher education within
14 The State System of Higher Education committed while
15 the student was actively participating in institution-
16 sponsored curricular or co-curricular activities or
17 events under the direct supervision of a faculty or
18 staff member when such participation is an academic
19 requirement for a course or program the student is
20 enrolled in.

21 b. The exemption created by this paragraph shall not
22 apply to any act or omission of a student athlete, as
23 defined in paragraph 17 of Section 820.2 of Title 70,
24 committee while the student athlete was participating

1 in any interscholastic or intercollegiate sport
2 activity, event, or competition.

3 SECTION 2. This act shall become effective November 1, 2026.

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